Notification Waiver Determination

Pemba - Hewison Private Wealth

Acquisition	Elevate BidCo Pty Ltd (**BidCo**), which is indirectly wholly owned by Pemba Capital Fund III (**Pemba Fund III**), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Hewison & Associates Pty. Ltd. (**Hewison**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	18 August 2026

Parties to the Acquisition	The acquirer, BidCo, is a special purpose vehicle which is an indirectly wholly owned subsidiary of Elevate HoldCo Pty Ltd (**HoldCo**). HoldCo is currently wholly owned by Pemba Fund III, a private equity fund managed by Pemba Capital Partners Pty Ltd (**Pemba**), based in Sydney. Pemba is an investor in high-growth and entrepreneurial businesses across various sectors, with over AUD 2 billion in assets under management. One of Pemba's portfolio companies is SuperConcepts Pty Ltd (**SuperConcepts**), which provides self-managed super fund administration services and software to participants in the financial advice and accounting industries, including advisers, accountants and unadvised individuals. The target, Hewison, is a Melbourne-based wealth management firm that provides financial advisory, investment strategy and wealth management services to private clients across Australia. Hewison currently provides self-managed super fund administration services to its clients in-house and uses a third-party software provider for these accounts.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the supply of self-managed super fund administration services in Australia is low and

	the increase in share of supply arising from the Acquisition would be small b. there are alternative suppliers of self-managed super fund administration and software services, and financial advice and wealth management services in Australia c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act